

Sumit Raina vs Ut Of J&K And Others on 20 March, 2024

Author: Sanjay Dhar

Bench: Sanjay Dhar

Sr. No. 192

HIGH COURT OF JAMMU & KASHMIR AND LADAKH
AT JAMMU

WP(Crl) No. 21/2024
CM No. 1410/2024

Sumit Raina

.....Appellant(s)/Petitioner(s)

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Through: Mr. Sumir Pandita, Advocate.

vs

UT of J&K and others

..... Respondent(s)

Through: Ms. Sagira Jaffal, Advocate vice
Ms. Monika Kohli, Sr. AAG
Respondent No. 4-Ms. Mandeep Kour, In-
charge SHO Police Station, Women Cell,
Jammu (present in person)

Coram: HON'BLE MR. JUSTICE SANJAY DHAR, JUDGE
ORDER

20.03.2024

1. The petitioner has, through the medium of the present petition, sought a direction upon respondent No. 4 not to harass him by calling him unnecessarily to the Police Station.

2. It has been submitted in the petition that there is a matrimonial dispute going on between the petitioner and his wife i.e. respondent No. 5, regarding which petitioner has filed a proceeding under Section 13 of Hindu Marriage Act before the Family Court. It is also being submitted that proceedings under Section 125 Cr. P.C. are pending between the parties before the Family Court, Jammu. It has been further submitted that respondent No. 4 is unnecessarily calling the petitioner and harassing him without there being any case registered against him.

3. Respondent No. 4-Ms. Manpreet Kour, In-charge SHO, Police Station, Women Cell, Jammu has appeared in person and she has stated that a complaint has been filed by respondent No. 5 against the petitioner and being a matrimonial dispute, before registering a case it is her duty to make efforts of reconciliation between the husband and the wife. Respondent No. 4 has submitted that it is for this purpose only that she has called the petitioner to Police Station on several occasions.

4. Heard and considered.

5. There is no dispute to the fact that there is a marital discord going on between the petitioner and his wife i.e. respondent No. 5 in respect of which several proceedings are pending before the Family Court, Jammu. According to respondent No. 4 a complaint stands filed by respondent No. 5 against the petitioner, in which she has alleged that the petitioner has committed acts of cruelty against her. It seems that respondent No. 4 has tried to reconcile the differences between the petitioner and respondent No. 5 and for this purpose she has been calling the petitioner. It also seems that at this stage there are hardly any chances of settlement between the petitioner and respondent No. 5, because the petitioner has already filed a petition under Section 13 of Hindu Marriage Act against his wife.

6. Be that as it may, it is not open to respondent No. 4 to stretch the negotiations between the petitioner and respondent No. 5 too far so as to give it a colour of harassment to any of the parties. If respondent No. 4 feels that there are no chances of settlement between the petitioner and respondent No. 5 and there is any merit in the complaint filed by respondent No. 4 against the petitioner, the only option available to her is to register the case and proceed further in the matter in accordance with law and in the event, a case is registered against the petitioner, he has the remedy of approaching the competent court for grant of bail.

7. In view of the above, the present writ petition is disposed of with a direction to respondent No. 4 to take a decision on the complaint filed by respondent No. 5 against the petitioner in accordance with law and thereafter proceed further in the matter. In case any FIR is registered against the petitioner, he shall be at liberty to approach the appropriate court for grant of bail. Respondent No. 4, shall however, not call the petitioner to Police Station prior to registration of the case.

8. Disposed of.

(SANJAY DHAR) JUDGE Jammu 20.03.2024 Sahil Padha Whether the order is speaking: Yes/No.
Whether the order is reportable: Yes/No.